

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, May 29, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27329 against Police Officer Luigi Tirro, Tax Registry No. 964803. The case was conferenced on May 21, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a forfeiture of Twenty (20) vacation days in return for a plea of guilty on the Charges and Specifications.

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-27329

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, TIRRO	FIRST LUIGI	M.I.	COMMAND 001 PRECINCT
SHIELD NO. 5819	TAX REGISTRY NO. 964803	SOCIAL SECURITY NO.	DATE APPOINTED 10/18/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Luigi TIRRO, on or about July 28, 2021, at approximately 1018, while assigned to 001 PCT and on duty, in the vicinity of § 87(2)(b) New York County, used offensive language, in that he made remarks based on the perceived ethnicity of § 87(2)(b) by stating in sum and substance, "you don't belong here", "this is not your country. Go back to your country."	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Luigi TIRRO, on or about July 28, 2021, at approximately 1018, while assigned to 001 PCT and on duty, in the vicinity of § 87(2)(b) New York County, was discourteous, to § 87(2)(b) in that PO Tirro stated in sum and substance, "go back to your country," "this is not your country," without police necessity.	PLEADED GUILTY	

DC Burtis 6/19/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab... 6/27/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

June 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202104459 (Incident Date: October 17, 2022 on DADS No. 2022-27329)
involving Police Officer Luigi Tirro, Tax No. 964803

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Luigi Tirro, and has determined that his actions do not warrant the proposed penalty.

After reviewing the facts and circumstances of the case, the Police Commissioner agrees with the CCRB that Officer Tirro used offensive language. However, in the interest of progressive discipline, the Police Commissioner intends to impose the mitigated penalty. Officer Tirro, in his six years of service, has had minimal disciplinary history, is rated above standards, and has been evaluated as performing exceptionally in the last several years. Furthermore, he accepted responsibility for his actions by pleading guilty to the allegations.

Therefore, rather than a penalty of twenty (20) vacation days, the Police Commissioner intends to direct that Officer Tirro forfeit fifteen (15) vacation days, the mitigated penalty of ten (10) for offensive language and presumptive penalty of five (5) days for discourtesy to run consecutively. The Police Commissioner believes this outcome strikes the best balance between punishment, deterrence, and remediation.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

June 27, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202104459 (Incident Date: October 17, 2022 on DADS No. 2022-27329 involving Police Officer Luigi Tirro, Tax No. 964803)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated June 24, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to impose a lesser penalty against Officer Tirro. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

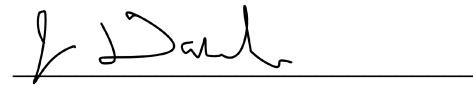
On May 21, 2024, Officer Tirro pled guilty to both charges with an understanding that the recommendation would be that he receive a penalty of the forfeiture of twenty (20) vacation days. Deputy Chief Marino stated that after reviewing the recommendation of the CCRB, you agree with the CCRB that Officer Tirro used offensive language. However, in the interest of progressive discipline, Deputy Chief Marino states that you intend to impose for the charge of offensive language the mitigated penalty of the forfeiture of ten (10) vacation days along with the forfeiture of five (5) days for the charge of discourtesy, for a total penalty of the forfeiture of fifteen (15) vacation days. You believe this mitigated penalty strikes the best balance between punishment, deterrence, and remediation.

In this case, PO Tirro and PO Castro arrived outside of § 87(2)(b) business on § 87(2)(b) and asked § 87(2)(b) why he refused to pay the worker. § 87(2)(b) stated that a worker he had hired to do construction work complained to the police that § 87(2)(b) refused to pay him and gave him his tools back. § 87(2)(b) asked the officers if they knew what was going on as he already placed the tools for the worker outside his store, and the worker retrieved the tools in front of PO Tirro and PO Castro. As both officers started walking away, PO Tirro twice said to § 87(2)(b) “go back to your fucking country”.

PO Tirro's statement telling § 87(2)(b) to go back to his country was both discourteous and offensive and served no law enforcement objective, regardless of his stated intention, and thus violated AG 304-06 and PG 200-02. PO Tirro was not justified in being discourteous and offensive to § 87(2)(b). The facts of this case do not justify the mitigated penalty for offensive language.

Mitigation is appropriate when a member of service attempts to de-escalate an incident. In this case, PO Tirro made the statement while walking away from the civilian, and in so doing he actually escalated the encounter instead of de-escalating the encounter. Even though Officer Tirro has had minimal disciplinary history, is rated above standards and has performed exceptionally in the last several years, the facts do not support a mitigation penalty. Therefore, the current agreed penalty of the charge of offensive language with a presumptive penalty of the forfeiture of twenty (20) vacation days should remain and run concurrently with the discourtesy charge of the forfeiture of five (5) vacation days for a total forfeiture of twenty (20) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board